Number 38 *of* 2014

COMPANIES ACT 2014

REVISED

Updated to 1 January 2023

This Revised Act is an administrative consolidation of the *Companies Act 2014*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Local Government (Maternity Protection and Other Measures for Members of Local Authorities) Act 2022* (52/2022), enacted 21 December 2022 and all statutory instruments up to and including the *Planning And Development And Foreshore (Amendment) Act 2022 (Commencement) Order 2023* (S.I. No. 1 of 2023), made 1 January 2023, were considered in the preparation of this Revised Act.

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Number 38 *of* 2014

COMPANIES ACT 2014

REVISED

Updated to 1 January 2023

An Act to consolidate, with amendments, certain enactments relating to companies and to provide for related matters.

[23*rd December,* 2014]

Be it enacted by the Oireachtas as follows:

PART 1

PRELIMINARY AND GENERAL

Short title and commencement

1. (1) This Act may be cited as the Companies Act 2014.

(2) This Act shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

(3) Without prejudice to the generality of *subsection (2)*, an order or orders under that subsection may appoint different days for the coming into operation of *section 4* or *1325* so as to effect the repeal or revocation provided by *section 4* or *1325* of—

(a) an enactment specified in *Part 1* or *Part 2* of *Schedule 2* or in *Schedule 15*, as the case may be, on different days for different purposes; or

(b) different provisions of an enactment specified in *Part 1* or *Part 2* of *Schedule 2* or in *Schedule 15*, as the case may be, on different days.

Interpretation generally

2. (1) In this Act—

F1**[**...**]**

"Acting Director" means a person appointed under *section 948* as the Acting Director of Corporate Enforcement;

specified by or under this Act, by which the one or more steps concerned ought to have been taken and the date on which they have been taken.

(8) Where regulations under this section require, in respect of the doing of a thing referred to in *subsection (1)*, the payment of a fee of an amount specified in them and the fee of the specified amount is not paid to the Registrar, then, subject to any special cases that the Minister may deem it expedient to provide for in the regulations, the Registrar is not obliged to do (where the Registrar would otherwise be so obliged) the thing concerned.

(9) *Subsection (7)* is in addition to, and not in derogation from, any particular provision of or under this Act that provides or the effect of which is that a fee of a prescribed amount must be paid to the Registrar as a condition, or one of the conditions, for the Registrar's doing the particular act concerned.

(10) All fees paid to the Registrar in pursuance of this Act shall be paid into or disposed of for the benefit of the Exchequer in such manner as the Minister for Public Expenditure and Reform may direct.

Annual report by Registrar

890. (1) The Registrar shall, as soon as may be, but not later than 4 months, after the end of each year, make a report in writing to the Minister of the Registrar's activities during that year and the Minister shall cause copies of the report to be laid before each House of the Oireachtas not later than 6 months after the end of that year.

(2) The Minister may, after consultation with the Registrar, prescribe the form of a report under this section and the manner in which any matter is to be addressed in such a report.

F505**[Collection of certain data by Registrar**

890A. (1) The Registrar shall collect and aggregate, on an annual basis, data on procedures concerning a process taken under *Part 8*, *9*, *10*, *10A*, or *11* in compliance with Article 29 of Directive (EU) 2019/1023 of the European Parliament and of the Council of 20 June 2019[3] on preventive restructuring frameworks, on discharge of debt and disqualifications, and on measures to increase the efficiency of procedures concerning restructuring, insolvency and discharge of debt, and amending Directive (EU) 2017/1132.

(2) The Registrar shall collect and aggregate the data referred to in *subsection (1)* for –

(a) the full calendar year commencing on 1 January 2023 and ending on 31 December 2023, and

(b) every full calendar year ending on 31 December thereafter.**]**

Inspection and production of documents kept by Registrar

891. (1) On payment of the prescribed fee, any person may—

(a) inspect any document which has been received and recorded by the Registrar in pursuance of this Act,

(b) require the Registrar to certify a certificate of incorporation of any company, or

[3] OJ No. L 172, 26.6.2019, p. 18

(b) the agreement may be entered into after an enquiry under *section 933* into the non-compliance has been commenced but not, subject to *paragraph (d)*, after it has been completed;

(c) without prejudice to the generality of the terms of the agreement, such terms may include terms under which the relevant body accepts—

(i) the imposition of one or more sanctions that may be imposed under *section 933(6)(b)*, and

(ii) if an enquiry under *section 933* into the non-compliance has been commenced, the payment of costs referred to in *section 933(7)*;

(d) the agreement may be entered into after an enquiry under *section 933* has been undertaken and carried out only to the extent to determine which sanctions (if any) referred to in *paragraph (c)(i)* to impose on the relevant body;

(e) the terms of the agreement are binding on the Supervisory Authority and the relevant body.

(4) Subject to *subsection (5)*, where the relevant body with whom the Supervisory Authority has entered into the *section 933A* agreement fails to comply with one or more of the terms of the agreement, the Supervisory Authority may apply to the court for an order compelling that body to comply with those terms.

(5) In default of payment, any amount agreed to be paid to the Supervisory Authority by the relevant body under the *section 933A* agreement may be recovered by the Supervisory Authority from the body as a simple contract debt in any court of competent jurisdiction.

(6) The Supervisory Authority may, at its discretion, publish a *section 933A* agreement on its website.

(7) *Section 941* shall be disregarded for the purposes of a *section 933A* agreement.**]**

Investigation of possible breaches of standards of prescribed accountancy bodies

F563**[934.** (1) In this section—

"client" includes an individual, a body corporate, an unincorporated body of persons and a partnership;

"relevant person"—

(a) in relation to an investigation of a member or former member of a prescribed accountancy body, means—

(i) that member or any other member or former member of the prescribed accountancy body,

(ii) a client or former client of the member,

(iii) if the client or former client is a body corporate, a person who is or was an officer, employee or agent of the client or former client,

(iv) the prescribed accountancy body or a person who is or was an officer, employee or agent of that body,

(v) if the member is an individual, a person who is or was an employee or agent of the member,